

challenged is a proper party to request an adjudication of a particular issue and not whether the issue itself is justiciable.²¹ Thus, a party may have standing in a particular case, but the federal court may nevertheless decline to pass on the merits of the case because, for example, it presents a political question.²² A proper party is demanded so that federal courts will not be asked to decide "ill-defined controversies over constitutional issues," *United Public Workers v. Mitchell*, 330 U. S. 75, 90 (1947), or a case which is of "a hypothetical or abstract character," *Aetna Life Insurance Co. v. Haworth*, 300 U. S. 227, 240 (1937). So stated, the standing requirement is closely related to, although more general than, the rule that federal courts will not entertain friendly suits, *Chicago & Grand Trunk R. Co. v. Wellman*, *supra*, or those which are feigned or collusive in nature, *United States v. Johnson*, 319 U. S. 302 (1943); *Lord v. Veazie*, 8 How. 251 (1850).

When the emphasis in the standing problem is placed on whether the person invoking a federal court's jurisdiction is a proper party to maintain the action, the weakness of the Government's argument in this case becomes apparent. The question whether a particular person is a proper party to maintain the action does not, by its own force, raise separation of powers problems related to improper judicial interference in areas committed to other branches of the Federal Government. Such prob-

²¹ This distinction has not always appeared with clarity in prior cases. See Bickel, Foreword: The Passive Virtues, The Supreme Court, 1960 Term, 75 Harv. L. Rev. 40, 75-76 (1961).

²² One contemporary commentator advanced such an explanation for the holding in *Frothingham*, suggesting that the standing rationale was simply a device used by the Court to avoid judicial inquiry into questions of social policy and the political wisdom of Congress. See Finkelstein, Judicial Self-Limitation, 37 Harv. L. Rev. 338, 359-364 (1924).